

Grievances

What is a grievance?

A grievance is an official complaint concerning waiver services. SCDHHS is responsible for operating the complaint system. Complaints may include dissatisfaction with a provider, a course of treatment, or how something is administered.



Who should I contact if I have a concern?

Complaints can be reported by contacting the wrap-around facilitator or SCDHHS waiver staff. If the complaint concerns one of these entities, the family member or youth should report it to one of the alternative parties. All complaints must be submitted in writing and will not be addressed until a written statement is received.

What happens after a grievance is received?

If the complaint is received by the wraparound facilitator, a supervisor will investigate and schedule a meeting to address the concerns of the family member or youth. If SCDHHS waiver staff receives the grievance, waiver staff will investigate and schedule a meeting to address concerns of the family member or youth.

How are grievances resolved?

Complaints resolved during a meeting will be acknowledged in writing and documented in the youth's record at SCDHHS. Unsatisfactory outcomes may be appealed by writing to the SCDHHS waiver director. Assistance is available to family members or youth during this process. SCDHHS must issue a written decision within 10 days of receiving the complaint.

What if I am dissatisfied with the decision?

Complaints regarding services being provided to children by a state agency can be submitted to South Carolina Department of Children's Advocacy (DCA) at:

<https://childadvocate.sc.gov/submit-complaint>



Appeals

What is the purpose of an appeal?

The purpose of an appeal is to allow someone to question an adverse action or adverse determination of a final agency decision. An adverse action includes termination, suspension or reduction of waiver or Medicaid state plan services on a youth's plan of care. An adverse determination includes denial of entry into the waiver. A final agency decision is the completion of the decision making process.



When can someone request an appeal?

An appeal can be requested if the family member or youth:

- A) is not given the choice of home and community based services as an alternative to institutional care;
- B) is denied a service or provider of choice (when available); or,
- C) has services denied, suspended, reduced or terminated.

What is included in an appeal request?

- A copy of the notification of denial received from SCDHHS regarding the specific matter on appeal
- A specific statement identifying which issue is being appealed
- A description of how the family member or youth will receive status updates on the appeal request

What is the timeline for submitting an appeal?

To avoid interruption of waiver services, an appeal must be submitted within 10 calendar days of the date the written notification of the adverse decision was mailed. If the appeal is denied, the family member or youth may be required to pay for services during the appeal period. Otherwise, an appeal must be submitted within 30 calendar days from the date the notification was mailed.

Where can appeals be submitted?

Online at:

<https://msp.scdhhs.gov/appeals/site-page/file-appeal>

Faxed to:

(803)-255-8206

Mailed to:

Division of Appeals and Hearings
SC Department of Health and Human Services
PO Box 8206
Columbia, SC 29202-8206

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